supplant these separate bodies of law with a 'uniform civil code'. This turned out to be among the most difficult questions for the assembly, for it involved a choice between competing visions of India. Those who supported a uniform civil code argued that it heralded the emergence of a secular, progressive India. Those in favour of retaining personal law appealed to values of inclusiveness and pluralism. The assembly found a compromise solution. Rather than imposing a uniform civil code from the outset, the state was charged with 'endeavour[ing] to secure' a uniform civil code for the country under Article 44.

About eighteen months after the Constitution came into force, the Bombay High Court was confronted with an important case involving personal law. Several Hindu men were charged with offences of bigamy under Bombay's bigamy law – the Bombay Prevention of Hindu Bigamous Marriages Act of 1946. This law not only made bigamous marriages invalid among Hindus, but also made it a criminal offence (punishable with up to seven years in prison) for those that entered into such marriages. The cases involving these Hindu men yielded a range of different outcomes. A judge from Mehsana sentenced one of them to six months' rigorous imprisonment and a fine of Rs 100. Another judge from Miraj sentenced two of them to a single day of rigorous imprisonment and a fine of Rs 50. The other two were acquitted, with judges from south Satara and Kaira concluding that the law was unconstitutional. The Bombay High Court was tasked with deciding whether the law was valid, or whether it should be struck down as invalid because it violated the provisions of the Constitution.

This case involved a number of distinguished personalities. The bench consisted of Chief Justice M.C. Chagla and Justice P.B. Gajendragadkar. Chagla is counted among the greatest judges never to have served in the Supreme Court. That was not due to a lack of opportunity – Chagla declined an offer to serve in the Supreme Court because being chief justice of the Bombay High Court (a court of greater antiquity and tradition) was